

CV-26-000239 BELL, WILLIAM vs BENHAM, CHRISTOPHER – Plaintiff's Motion for Alternative Service by Publication – DENIED, without prejudice.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: This motion was filed on 5/19/26 requesting service of Plaintiff's Complaint on Defendant Jesse Medlock by publication alleging inability to serve Defendant despite multiple diligent attempts. The motion is not supported by any declaration by Plaintiff or by any affidavit of diligence. That aside, the Court file indicates that Plaintiff thereafter amended his Complaint which was filed with the Court on 6/26/26. The Court file also indicates that Plaintiff attempted service on Defendant Jesse Medlock, the same Defendant in respect of which Plaintiff now seeks service by publication, with Plaintiff's Amended Complaint and Summons by mail with a Notice of Acknowledgment and Receipt of 6/26/26 per the proof of service on file. However, the Completed Notice and Acknowledgment of Receipt are not attached to the proof of service. There is also no indication that Defendant Medlock has executed and returned the signature portion of said Notice of Acknowledgment. Therefore, service is not complete as to said Defendant Medlock. Notably, per Code Civ. Proc., § 415.50 (a), "A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article". However, to the extent that the motion seeks publication as to the Complaint, which has now been overtaken by Plaintiff's First Amended Complaint, and it appears that other effective avenues exist for service on Defendant, Plaintiff's motion is hereby denied without prejudice. The following are the tentative rulings for cases calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no Tentative Rulings for Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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There are no Tentative Rulings for Department 19

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